

25STCV02726 25STCV02726

County: los-angeles

Division: Civil Law and Motion

Department: I

Hearing date: 2026-07-07

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Case Number: 25STCV02726 Hearing Date: July 7, 2026 Dept: I

25STCV02726 JASONN INTERNATIONAL, LLC

vs OLD MASTER PRODUCTS, INC.

July 7, 2026, at 8:30 a.m.

Van Nuys Courthouse East, Dept. I

Tentative Ruling – Motion to Compel Further

Discovery

I.

Background

On January 31, 2025, Plaintiff Jasonn

International LLC ("Plaintiff") filed a complaint against Defendant Old Master

Products, Inc, ("Defendant") and Does 1 to 20 alleging five causes of action:

(1) breach of contract; (2) breach of implied-in-fact contract; (3) open book account; (4) account stated; and (5) goods sold and delivered.

On May 27, 2025, Plaintiff filed its

first amended complaint ("FAC").

On September 11, 2025, Plaintiff filed

its second amended complaint ("SAC").

On June 11, 2026, Defendant filed the

instant motion to compel Plaintiff's further responses.

On June 22, 2026, Plaintiff filed its opposition.

On June 29, 2026, Defendant filed its reply.

II. Motion to Compel Further Discovery

“If a party filing a response to a demand for inspection, copying, testing, or sampling under Sections 2031.210, 2031.220, 2031.220, 2031.230, 2031.240, and 2031.280 thereafter fails to permit the inspection, copying, testing, or sampling in accordance with that party’s statement of compliance, the demanding party may move for an order compelling compliance.” (Cal. Code of Civ. Proc. § 2031.320(a).)

“ . . . [T]he court shall impose a monetary sanction . . . against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel compliance with a demand, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (CCP § 2031.320(b).)

Evidentiary Objections

As a preliminary matter, the Court sustains Defendant’s June 29, 2026, evidentiary objections to portions of John Bowerbank (“Bowerbank”)’s declaration since Bowerbank lacks personal knowledge of the meet and confer calls between counsel. (See June 29, 2026, Evidentiary Objections; see also Bowerbank Decl. ¶¶ 4-5.)

Analysis

Defendant brings this motion to compel Plaintiff’s further responses to its Requests for Production of Documents, Set One, Nos. 34, 36-37, and 50. (See Motion at p. 2.) These requests concern “critical customs and entry records within its legal control, possessed by [Plaintiff’s] own agent, Comet Customs Brokers, Inc. (‘Comet’). These forms – reflecting the declared value of the exact goods at issue – go to the very heart of both [Plaintiff’s] affirmative claims and [Defendant’s] defenses

regarding the Skimming Scheme.” (Id. at 6:3-11.) Defendant further argues that, during a June 9, 2026, meet and confer call, Comet confirmed that it has the records at issue in its possession. (Id. at 12-18.) “While [Defendant] is now forced to serve an amended subpoena and pursue a motion to compel in New York court to eliminate any further evasion by Comet, that does not relieve [Plaintiff] of its own independent legal discovery obligations in this action. These critical documents remain within [Plaintiff]’s legal control. [Plaintiff] cannot hide behind its agent’s manufactured technicalities to shirk its discovery obligations it owes in this Court.” (Id. at 19-23.)

In opposition, Plaintiff first argues that Defendant previously brought a similar motion which the Court denied on March 11, 2026. (Opposition at 1:9-19; see also March 11, 2026 Order.) However, that Order denied Defendant’s requests on separate grounds – namely, a failure to meet and confer, and noting that the parties were soon participating in an informal discovery conference. (See March 11, 2026, Order.) The Court did not reach the merits of the matter. (Ibid.) Accordingly, the Court disregards this argument.

Next, Plaintiff argues that the information sought is protected by California’s tax return privilege. (See Opposition at 6:25-9:5.) “California recognizes a strong public policy protecting taxpayers from compelled disclosure of tax-related information. The purpose of the tax return privilege is to encourage taxpayers to make full and truthful disclosures to taxing authorities without fear that the information will later be used against them in private litigation.” (Ibid.) However, the Court finds this argument inapposite since Defendant does not seek Plaintiff’s tax returns; instead, Defendant only seeks Plaintiff’s import records. Notably, as the importer of record, Plaintiff is statutorily mandated by federal law to make, keep, and render for examination and inspection all records necessary to substantiate its entries. (See 19 U.S.C. § 1508(a)(1) and (c)(1).) Regardless, while Plaintiff argues that Defendant seeks the same information that would be included in Plaintiff’s tax returns (citing *Webb v. Standard Oil Co.* (1957) 49 Cal.2d 509, 513), Plaintiff waived this privilege by failing to raise this privilege in its responses. (See CCP § 3031.300(a); see also Separate Statement.)

Based on the foregoing, the Court finds good cause to compel further production.

Sanctions

Notwithstanding the foregoing, the Court declines to award sanctions since Plaintiff acted with substantial justification in opposing this motion pursuant to CCP § 2031.310(h). Notably, Plaintiff has previously supplemented its responses and argued in good faith that the records sought are privileged.

III. Conclusion

Based on the foregoing, Defendant's motion is GRANTED in part and DENIED in part.

Plaintiff is to serve supplemental, verified, objection-free responses to Defendant's Requests for Production of Documents Nos. 34, 36-37, and 50 within 20 days of this order.

Defendant's request for monetary sanctions is denied.

Moving party to give notice.